

Arjun Panditrao Khotkar v. Kailash Kushanrao Gorantyal

Citation: (2020) 7 SCC 1 | Court: Supreme Court | Year: 2020

Coram: 3-Judge Bench (R.F. Nariman, S. Ravindra Bhat, V. Ramasubramanian JJ.) | Subject: Evidence & BSA 2023 | Provisions: Evidence Act

I. EXECUTIVE SUMMARY & CASE GLIMPSE

Production of a Certificate under Section 65B(4) of the Indian Evidence Act (now Section 63 BSA 2023) is a mandatory condition precedent for the admissibility of electronic records as secondary evidence. Overruled Shafhi Mohammad and upheld the strict standard in Anvar P.V.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding Evidence Act Sec 65B / BSA 2023 Sec 63. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€ Whether the impugned state actions or commercial conduct conformed to Evidence Act Sec 65B / BSA 2023 Sec 63.
- â€ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Electronic records are easily susceptible to alteration, deletion, or tampering. The statutory certificate signed by a person occupying a responsible official position is indispensable for proving authenticity, unless the original device itself is physically produced in court.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€ Affirmed mandatory requirement of Section 65B(4) electronic certificate.
- â€ Overruled Shafhi Mohammad (2018) relaxation of electronic certificate.
- â€ Clarified that courts can direct production of certificates from recalcitrant custodians.